

there are eight distinct allegations in paragraph 61 of the instant Petition. Real Party does not demonstrate that each of these allegations is barred by res judicata and simply relies on its broad claim.

Real Party's argument on reply is also problematic. There, Real Party does attempt to isolate each allegation. But in order to demonstrate that each issue could have been raised previously, Real Party cites to the administrative record of *Colton I*, and it is a portion of the record that was not the subject of judicial notice herein. This is beyond the scope of this demurrer. Next, the demurrer did not list the issues raised that could have been raised and only did so for the first time on reply. This goes beyond the issues raised by Petitioners in their Opposition. With respect to new argument raised for the first time on reply, fairness militates against considering such argument because the opposing party has not had an opportunity to address the argument. (*Golden Door Properties, LLC v. City of San Diego* (2020) 50 Cal.App.5th 467, 559.)

Ultimately, the argument here fails for the same reason the argument with respect to exclusive jurisdiction fails: It fails because Real Party only demurs to part of a cause of action. By arguing broadly that each allegation is barred but not isolating each and demonstrating where it was previously litigated, and then by footnoting the fact that certain allegations are based on changes made after *Colton I* was decided [see e.g., Dem. at p. 17, FN5], Real Party fails to show how each allegation under the causes of action are barred.

Collateral Estoppel – Similarly, here, Real Party argues broadly that the Petition is subject to demurrer because all the issues raised were decided in *Colton I* and are therefore precluded by the doctrine of collateral estoppel. Petitioners, as with *supra*, argue collateral estoppel does not apply in light of there having been no final judgment. Yet, in light of this broad approach taken by Real Party, it again does not show that an entire cause of action would be disposed of on the grounds of collateral estoppel, especially where there are concessions with respect to the road-widening and the fact that this was decided after *Colton I*'s Judgment. Thus, accepting the allegations as true and in a light most favorable to Petitioners, the demur again only affects part of a cause of action.

18. *Mabudian, M.D., et al, v. Beaver Medical Group, PC, et al*, Case No. CIVSB2133187
Defendants' Motion to Seal
9/22/26, 9:00 a.m., Dept. S-17

Continued from September 1, 2026, to allow for a supplemental declaration

The motion is **MOOT** as to Exhibits 3, 4, 9, and 10, in light of the parties' agreement that these documents may be filed in support of Defendants pending motion for summary judgment or adjudication.¹ The Court would **GRANT** the motion as to Exhibits 5 through 8.

¹ On August 24, 2026, Defendants filed a Notice of Lodging Documents Conditionally Under Seal, in which it states that Plaintiff has requested that her home address be redacted from the documents and then requests the attached Exhibits 1, 2, and 11 be lodged as the exhibits instead of the ones previously submitted on May 29, 2026. Defendants agree this approach is reasonable.

The Court would also **ORDER** the return of the Appendix of Exhibits currently lodged. Defendants have ten days in which to re-file the Appendix with Exhibits 3, 4, 9, and 10 (see *supra*) and Exhibits 1, 2, and 11, properly redacted (see FN 1). Defendants may submit Exhibits 5 through 8 separately under seal.

Unless confidentiality is required by law, all court filings are presumed to be public. (Rules of Court, rule 2.550(c).) In order to seal a court filing, the court must make five express findings: (1) there exists an overriding interest that overcomes the public's right of access; (2) the overriding interest supports the sealing; (3) there is a substantial probability that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored to the need; and (5) there are no less restrictive means to protect that overriding interest. (Rules of Court, rule 2.550(d).)

At issue are Exhibits 3, 4, 5, 6, 7, 8, and 9, that Defendants submitted in support of their motion for summary judgment or adjudication (MSJ). On May 29, 2026, Defendants lodged conditionally under seal their entire Appendix of Evidence in support of their MSJ. Because Exhibits 3, 4, 9, and 10 relate only to Plaintiff's medical information and Plaintiff states that she does not oppose and, in fact, authorizes the documents being filed in the public record, Defendants have withdrawn their motion as to those exhibits. Thus, the motion is moot as to those exhibits.

Now, the motion to seal only remains at issue as to Exhibits 5 through 8, which are various email chains from March 18, 2021 [Exh. 5]; March 19, 2021 [Exh. 6]; and May 6, 2021 [Exh. 8]; as well as a facsimile from April 20, 2021 [Exh. 7]. Defendants assert Exhibits 5 to 8 contain financial and business information and, thus, are protected from disclosure. They provide case citations to cases in which courts sealed financial information involving confidential matters related to business operations that if revealed would interfere with a party's ability to effectively compete in the marketplace and prejudice a party's legitimate interests. Defendants assert that, if their business decisions were made public, it is likely that competitors would make use of such information and prejudice Defendants' market position.

Defendants' counsel's declaration states the Exhibits at issue have been marked confidential under the stipulated protective order. He also states the exhibits involve confidential nonpublic business information. (Wilson Decl., ¶¶2-3; also Chen Decl., ¶¶3-9.) A serious injury from public disclosure must be shown and without such showing, the exhibits cannot be ordered sealed. (*Universal City Studios, Inc. v. Superior Court* (2003) 110 Cal.App.4th 1273, 1281-1282.) Here, the at-issue documents have been designated confidential pursuant to the applicable protective order, and a review of the relevant exhibits indicates at least implied descriptions of internal Utilization Management (UM) processes and deliberations. The supporting declarations appear sufficient to support the request. (See Wilson Decl., ¶3 [confidential information containing confidential and proprietary business information]; Chen Decl., ¶¶3-9.) Thus, the Court would find the factors under Rule 2.550 to be satisfied.
